

Singuluri Sobha Rani vs Singuluri Kishore Alias Krishna on 8 November, 2019

Author: C. Praveen Kumar

Bench: C. Praveen Kumar

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THE HON'BLE SRI JUSTICE C. PRAVEEN KUMAR

C.R.P. Nos. 1918, 1919 and 1920 of 2019

COMMON ORDER:

(Per the Hon'ble Sri Justice C.Praveen Kumar)

1) Civil Revision Petition No.1919 of 2019 is filed assailing the Order, dated 28.02.2019 passed in I.A. No. 154 of 2019 in F.C.O.P. No. 155 of 2016 on the file of the XIV Additional District Judge-cum-Additional Family Judge, Krishna, Vijayawada, wherein the application filed by the petitioner-wife for reopening the matter for recalling P.W.1 for the purpose of marking documents, came to be dismissed.

2) Civil Revision Petition No.1920 of 2019 is filed assailing the Order, dated 28.02.2019 passed in I.A. No. 155 of 2019 in F.C.O.P. No. 155 of 2016 on the file of the XIV Additional District Judge-cum-Additional Family Judge, Krishna, Vijayawada, wherein the application filed by the petitioner-wife for recalling P.W.1 for the purpose of marking documents, came to be dismissed.

3) Civil Revision Petition No.1918 of 2019 is filed assailing the Order, dated 28.02.2019 passed in I.A. No. 156 of 2019 in F.C.O.P. No. 155 of 2016 on the file of the XIV Additional District Judge-cum-Additional Family Judge, Krishna, Vijayawada, wherein the application filed by the petitioner-wife for marking of certain documents, which are essential for registration of the case came to be dismissed.

4) As seen from the record, the petitioner-wife filed the above O.P. seeking maintenance under Section 25 of the Hindu Marriage Act; Section 18 of the Hindu Adoptions and Maintenance Act and Section 7 of the Family Courts Act. Pending trial, the present three Interlocutory Applications came to be filed seeking to recall, re-open and receive documents for the purpose of marking the documents.

5) Counter came to be filed opposing the same.

6) Taking into consideration the facts in issue, the Trial Court

rejected the said applications mainly on the ground that the documents, which were in existence at the time of filing of the O.P., came to be filed now only to fill up lacunas in the case of the petitioner.

7) Challenging the same, these three Criminal Revision Petitions are filed.

8) As seen from the record, the averments in the Interlocutory Applications filed along with O.P. indicate that, at the time of cross- examination of R.W.1, he intentionally denied certain important suggestions and as such these documents are required to be marked to prove the same. It is now pleaded that, the respondent-husband married another lady and that he is having children and hence, these documents are required for the reliefs claimed in the said O.P.

9) The counsel appearing for the respondent-husband would submit that these applications came to be filed only with a view to drag on the proceedings. According to him, the documents, which are sought to be marked, are xerox copies, which are inadmissible in evidence. Since the foundation for marking of these documents is not laid, counsel pleads that the order under challenge warrants no interference.

10) The point that arises for consideration is, Whether these documents are essential for marking through PW.1 so as to prove the case of the petitioner?

11) Admittedly, the petitioner herein is the wife of the respondent. She married the respondent on 22.06.1995 as per Hindu rites and customs. At the time of marriage, parents of the petitioner presented cash of Rs., 6,00,000/-, and gold ornaments of 50 tulas; apart from that, a gold chain, a ring and bracelet, in total 10 sovereigns, were presented to the respondent. It is further pleaded that, the respondent-husband was also presented with a Bajaj Scooter and a sum of Rs.1,50,000/- was given as adapaduchu katnam. Both of them lived together only for a few days and thereafter, it is alleged that the true colors of the respondent- husband came to light. It is pleaded that he spent the amounts lavishly for his whims and fancies. Out of wedlock, they were blessed with a daughter, by name, Singuluri Sunayana, on 25.12.1997. Taking advantage of the same, the respondent-husband and his parents started harassing the petitioner for not giving birth to a male child. Since the relationship between the petitioner and respondent got strained, the same resulted in both of them living separately.

12) As observed earlier, pending trial, these applications came to be filed on the ground that the respondent-husband married another lady and out of wedlock, he was blessed with two children. On coming to know about the said fact, the petitioner herein filed applications for marking the birth certificates, Aadhar Cards, school admission forms of the children born through alleged second wife, apart from the properties purchased by him, to show that he is capable of paying maintenance. It is no doubt true that some of the documents, which are now sought to be marked, are xerox copies.

13) At this stage, it is also to be noted that, the husband also filed an application for recall of the petitioner for marking the Order in D.V.C. No. 77/2016 and also to speak to the contents therein, which is pending consideration before the Trial Court.

14) The argument of the learned counsel for the petitioner is that, the fact that the respondent-husband married again and through the second marriage, he is having children was known to her and only after coming to know about the same, she collected copies of the documents and filed these applications.

15) Having regard to the fact that, these documents, which are now sought to be marked relate to birth certificates, Aadhar cards etc., of the two children born to them, rejecting their application at the threshold may not be proper. However, it may not be proper for this court to go into the importance or otherwise of these documents at this stage. But, definitely, the court ought not to have rejected the applications at the threshold itself.

16) Having regard to the fact that, the application filed by the respondent-husband is also pending consideration, these three revision petitions are allowed setting aside the impugned Orders and remanding the matter by directing the Trial Court to re-open, recall and mark the documents, subject to their admissibility and relevancy in accordance with law. No order as to Costs.

17) Consequently, miscellaneous petitions, if any, pending shall stand closed.

JUSTICE C. PRAVEEN KUMAR Date: 08.11.2019
Skmr/SM THE HON'BLE SRI JUSTICE C. PRAVEEN KUMAR C.R.P. Nos. 1918, 1919 and 1920 of
2019 Date : 08.11.2019 Skmr/SM.